The Wayback Machine - https://web.archive.org/web/20220624225440/https://www.philips.co.uk/c-w/pri...

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s Avent Baby Monitor+ Privacy Notice

This Privacy Notice was last updated on March 31, 2021.

The Philips Avent Baby Monitor+ ("App") provides parents with livestream video and audio services to help them monitor and take care of their babies ("Services"). The App processes personal data collected from any Philips baby monitor supported by the App, including the Philips Avent Connected Baby Monitor and/or the uGrow Smart Baby Monitor ("Monitor").

The purpose of this Privacy Notice is to help you understand our privacy practices when you use our Services, including what information and personal data we collect, why we collect it, and what we do with it, as well as your individual rights. The controller of your personal data under this Privacy Notice is Philips Consumer Lifestyle B.V. with address at High Tech Campus 5, 5656 AE, Eindhoven, The Netherlands ("Philips", "our", "we" or "us").

What Personal Data do we collect and for which Purposes?

We receive or collect information and personal data, as described in detail below, when we provide our Services, including when you access, download, install the Monitor or the App, or use our Services. We associate your personal data with unique identifiers. We may use this personal data as specified below and in general to perform the Services requested by you as a contractual necessity, to operate, provide, improve, customize, support, and market our Services based on our legitimate interest, or to comply with a legal obligation to which we may be subject. If you do not want us to collect and process your personal data, you may not be able to use the Services.

Account data
We collect your personal data when you create an account.

• When you create an account, the personal data we collect may include your name, username, profile photo, email address, country, location (IP address) and password. We also process information on your App usage, including your session, login and authentication information, which we use to manage your account.

• We use your Account Data to create and manage your account, allow you to securely login to the App and provide our Services, including sending you push notifications and/or In-App messages in connection with the Services. If you create a new account to login to the App, we will send you a verification email to verify your username and password and to communicate with you in response to your inquiries.

When you select "Share baby monitor" under "Baby monitor settings", the App allows you to share your baby monitor information with guest users, like your partner, spouse or close relatives. To share your baby monitor with guest accounts in the App, you must provide the email address of the guest after the guest has registered his/her account.

Guest users should download the App and create an account. Guest users can see your baby's profile and access most of the App features, including audio / video streaming, talkback, lullaby and night light control. The following features are not available to guests: alerts (sound detection, motion detection, temperature alarm); firmware information or triggering firmware upgrades; and sharing baby monitor information with additional guests.

Baby profile data
You can create a profile for your baby(ies). When you create a profile, we collect your baby's name and give you the option to provide your baby's gender, profile photo and date of birth. We use your baby's data to allow you to easily find and check your baby's Monitor in the App, provide our Services, including sending you push notifications and/or In-App messages, and manage your App settings. If you have more than one Monitor, you can create several baby profiles.

Videos and snapshots data
You can use the App to follow your baby's special moments as follows:

- ✓ The App allows you to see your baby's live videos. If you are away from home, Philips will stream these videos to your mobile device. However, Philips will not store this data.

- ✓ You can always record videos and take snapshots of your baby to capture special moments. This data will remain in your mobile device and Philips will not have access to them. You will be in full control of your baby's video recordings and snapshots.

Voice and audio data

You can use the App to interact with your baby as follows:

- ✓ You can talk to your baby using the App. If you are away from home, the App will allow you to stream your audios to your Monitor. However, Philips will not store this data.

- ✓ The App also allows you to record and save custom lullabies for your baby. You can play these songs to your baby whenever you want. We store your custom lullabies, lullaby timers and playlists to allow you to keep track of these features, help you understand what songs you are playing to your baby and what is the remaining playing time, and synchronize this data with your App so that you and guest users can see the updates.

Room temperature data
You can use the App to check the current and past temperature (last 24 hours) of your baby's room. We collect this data to show you your baby room's temperature history, help you ensure the temperature of the room is right for your baby and notify you if the temperature goes out of your desired range. Some Philips baby monitors also allow you to collect humidity information, which will help you keep track of your baby's room humidity.

Monitor data
We may collect device-specific information when you install, access, or use the Monitor. This includes your Monitor's unique user time-zone, device number, firmware version and usage data. We use this data to ensure your Monitor works properly and uses the right firmware, provide you with customer support when required and sending your push notifications and/or In-App messages in connection with the Services.

Night light data
We collect your night light's on/off status, brightness and timer. We store the latest status of your night light to allow you to keep track of this feature, and synchronize this data with your App so that you and guest users can see the updates.

Combined data
We may combine your personal data, including account data, with data collected during your interactions and usage of the Philips digital channels such as social media, websites, emails, apps and connected products, including your IP addresses, Cookies, mobile device information, communications you click on or tap, location details, and websites you visit.

We may analyze your Combined Data to improve the content, functionality and usability of the App, Monitor(s) and Services, as well as to develop new products and services in the mother and childcare domain. We may aggregate your Combined Data, removing individual personal data, in order to create publications, presentations, reports or other (marketing) communications, which we can use for both internal and external purposes.

If you consent to receiving promotional communications about Philips products, services, events and promotions that may be relevant to you based on your preferences and online behaviour, we may send you marketing and promotional communications via email, phone and other digital channels, such as mobile apps and social media. To be able to tailor the communications to your preferences and behavior and provide you with a more relevant and personalized experience, we may analyse your Combined Data. Before sending promotional communications to you, we will ask your consent. You may opt-out and unsubscribe from such communications at any time.

Ratings and reviews data
If you write a review or rate the App on the app stores, we may process such information to respond to your comments and questions, understand how you feel when using the App, get familiar with your general perception of the App and our brand, and use these insights to improve the App. We can only see your app store username, ratings, comments and any other detail you decide to share with us or

make publicly available. Unless you require us to do so, we do not link this information to your account credentials or any other information we hold from you. When you require customer support, we may use your data to follow-up on your case and guide you through our customer support process in accordance with section Customer support data further below.

Customer support data
When you require customer support, we may ask you to provide us with information related to your use of our Services, including your interaction with Philips, and how to contact you so we can provide the required support. We operate and provide our Services, including providing customer support, and improving, fixing, and customizing our Services. We also use your information to respond to you when you contact us.

Cookies data
We use cookies, tags or similar technologies ("Cookies") and/or collect information from your mobile device and Monitor to operate, provide, improve, understand, and customize our Services. Cookies allow us to recognize your mobile device and associated Monitor, and collect information and personal data including your unique user device number, the IP address of your mobile device, the type of mobile internet browser or operating system you use, session and usage data, or service-related performance information, which is information about your use of the App. We may also use this information to show you country specific content (including information in your local language).

Permissions
The App may request your permission to access your mobile device's storage capabilities, sensors or other features. We require access when strictly necessary to provide the Services as detailed below.

- Photos. If you add a picture to your baby's profile, we require permission to access your mobile device's camera or photo gallery.

- Location. The App requires location permission to automatically fill in your WiFi network's name (Service Set Identifier or SSID) during the setup of the Monitor. The App will read the currently used SSID from your mobile device.

- Microphone. The App requires microphone permission to allow you to talk to your baby and record your custom lullabies in accordance with section "Voice and audio data".

- Wi-Fi. The App requires Wi-Fi and Bluetooth permission to connect the Monitor to the App. You can at any time block these permissions through the settings of your mobile device.

- Files. The App requires access to the mobile device's files to store the language configurations and other files that the App uses to operate (e.g., graphics, media files, or other large program assets). If you delete the App, the data will be deleted from your mobile device.

In some cases, your operating system may request permissions that your mobile device needs for

technical reasons, but that are not controlled or used by Philips. We will not collect any data associated with such permissions unless required to provide our services in accordance with this notice.

You may block or revoke these permissions at any time under the settings of your operating system.

With whom do we share your Personal Data?

Your data may be shared with other Philips affiliates who are part of the Philips Group. Only people (within Philips) who have a need to know the information will have access to the information. Philips may disclose your personal data to third party service providers, business partners, or other third parties in accordance with this Privacy Notice and/or applicable law.

Service providers
We work with third-party service providers to help us operate, provide, improve, understand, customize, support, and market our Services.

We may share your personal data with the following service providers:

- **IT and cloud providers. These service providers deliver the necessary hardware, software, networking, storage, transactional services and/or related technology required to run the App or provide the Services.**

Philips requires its service providers to provide an adequate level of protection to your personal data similar to the level that we provide. We require our service providers to process your personal data only in accordance with our instructions and only for the specific purposes mentioned above, to have access to the minimum amount of data they need to deliver a specific service, and to protect the security of your personal data.

Other third parties
Philips may also work with third parties who process your personal data for their own purposes. If Philips shares personal data with third parties that use your personal data for their own purposes, Philips will ensure to inform you and/or obtain your consent in accordance with applicable laws before sharing your personal data. In this case, please read their privacy notices carefully as they inform about their privacy practices, including, what type of personal data they collect, how they use, process and protect them.

Philips sometimes sells a business or a part of a business to another company. Such a transfer of ownership could include the transfer of your personal data directly related to that business, to the purchasing company. All of our rights and obligations under our Privacy Notice are freely assignable by Philips to any of our affiliates, in connection with a merger, acquisition, restructuring, or sale of assets, or by operation of law or otherwise, and we may transfer your personal data to any of our affiliates, successor entities, or new owner.

Cross-border transfer
Your personal data may be stored and processed in any country where we have facilities or in which we engage service providers, and by using the Services you acknowledge the transfer (if any) of information to countries outside of your country of residence, which may have data protection rules that are different from those of your country. In certain

have data protection rules that are different from those of your country. In certain circumstances, courts, law enforcement agencies, regulatory agencies or security authorities in those other countries may be entitled to access your personal data.

If you are located in the EEA, your personal data may be transferred to our affiliates or service providers in non-EEA countries that are recognized by the European Commission as providing an adequate level of data protection according to EEA standards (the full list of these countries is available here: https://ec.europa.eu/info/law/law-topic/data-protection/international-dimension-data-protection/adequacy-decisions_en).

For transfers from the EEA to countries not considered adequate by the European Commission, such as the United States, we have put in place adequate measures, such as our Binding Corporate Rules for Customer, Supplier and Business Partner Data and/or standard contractual clauses adopted by the European Commission to protect your personal data. You may obtain a copy of these measures by following the link above or by contacting us here.

How long do we keep your data?

We will retain your personal data for as long as needed or permitted in light of the purpose(s) for which the data is collected. The criteria we use to determine our retention periods include: (i) the length of time you use the App and Services; (ii) whether there is a legal obligation to which we are subject; or (iii) whether retention is advisable in light of our legal position (such as in regard to applicable statutes of limitations, litigation or regulatory investigations).

Your choices and rights

If you would like to submit a request to access, rectify, erase, restrict or object to the processing of personal data that you have previously provided to us, or if you would like to submit a request to receive an electronic copy of your personal data for purposes of transmitting it to another company (to the extent this right to data portability is provided to you by applicable law), you may contact us here.

In your request, please make clear what personal data you would like to access, rectify, erase, restrict or object to its processing. For your protection, we may only implement requests with respect to the personal data associated with your account, your email address or other account information, that you use to send us your request, and we may need to verify your identity before implementing your request. We will try to comply with your request as soon as reasonably practicable.

Please note that:

• Where we rely on consent to collect and/or process your personal data, you may withdraw your consent at any time, without affecting the lawfulness of processing based on consent before your withdrawal.

• When we process your personal data based on a legal obligation to which we are subject, including when you interact with us to exercise any of your rights, we consider the processing to be lawful in accordance with Article 6.1.(c) of Regulation (EU) 2016/679.

• Where we rely on performance of a contract to process your personal data for purposes of the Services, we may not be able to provide the Services if we do not receive your information.

• We will only process your data for Philips' legitimate interests when we've concluded that the processing will not outweigh your privacy rights and interests.

• If you make use of (some of) your choices and rights, you may not be able to use, in whole or in part, our Services anymore.

We protect your personal data

We take seriously our duty to protect the data you entrust to Philips against accidental or unauthorized alteration, loss, misuse, disclosure or access. Philips uses a variety of security technologies, technical and organizational measures to help protect your data. For this purpose we implement, among others, access controls, use firewalls and secure protocols.

Special information for parents

While the Services are not directed to children, as defined under applicable law, it is Philips policy to comply with the law when it requires parent or guardian permission before collecting, using or disclosing personal data of children. We are committed to protecting the privacy needs of children and we strongly encourage parents and guardians to take an active role in their children's online activities and interests.

If a parent or guardian becomes aware that his or her child has provided us with his or her personal data without their consent, please contact us here. If we become aware that a child has provided us with personal data, we will delete his/her data from our files.

Changes to this Privacy Notice

Our Services may change from time to time without prior notice to you. For this reason, we reserve the right to amend or update this Privacy Notice from time to time. When we update this Privacy Notice, we will also update the date at the top of this Privacy Notice.

We encourage you to review regularly the latest version of this Privacy Notice.

The new Privacy Notice will become effective immediately upon publication. If you do not agree to the revised notice, you should alter your preferences, or consider stop using our Services. By continuing to access or make use of our Services after those changes become effective, you acknowledge that you have been informed and agree to the Privacy Notice as amended.

Contact Us

If you have any question about this Privacy Notice or about the way in which Philips uses your personal data, you may contact Philips and/our Data Protection Officer here. Alternatively, you have the right to lodge a complaint with a supervisory authority competent for your country or region.

Philips Consumer Lifestyle B.V.
High Tech Campus 5, 5656 AE,
Eindhoven, The Netherlands

Additional information for California Residents

California Civil Code Section 1798.83 permits our customers who are California residents to request and obtain from us once a year, free of charge, information about the personal information (if any) we disclosed to third parties for direct marketing purposes in the preceding calendar year. If applicable, this information would include a list of the categories of personal information that was shared and the names and addresses of all third parties with which we shared information in the immediately preceding calendar year. If you are a California resident and like to make such a request, please visit our privacy website: https://www.philips.com/a-w/privacy/questions-and-feedback.html.

Pursuant to the California Consumer Privacy Act of 2018 ("**CCPA**"), we are providing the following details regarding the categories of Personal Information that we collect and process about California residents via the Monitor and/or the App. For details on how we handle Personal Information pursuant to the CCPA in other contexts, please go here. Under the CCPA, "**Personal Information**" is information that identifies, relates to, or could reasonably be linked with a particular California resident or household.

Sources of Personal Information We collect Personal Information from: • Our interactions with you through the Monitor and/or the App; and • Our affiliates.

Collection and Disclosure of Personal Information The following chart details which categories of Personal Information about California residents we plan to collect, as well as which categories of Personal Information we have collected and disclosed for our operational business purposes in the preceding 12 months.

Categories of Personal Information	**Disclosed to Which Categories of Third Parties for Operational Business Purposes**
Categories of Personal InformationIdentifiers, such as name, contact information, IP address and other online identifiers.	*Our affiliates and subsidiaries; trusted third-party service providers; in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.*

Categories of Personal Information	**Disclosed to Which Categories of Third Parties for Operational Business Purposes**
Personal information as defined in the California customer records law, such as name and contact information.	*Our affiliates and subsidiaries; trusted third-party service providers in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.*
Characteristics of protected classifications under California or federal law, such as age, sex and primary language	*Our affiliates and subsidiaries; trusted third-party service providers in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.*
Internet or network activity information, such as browsing history and interactions with our online services	*Our affiliates and subsidiaries; trusted third-party service providers in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.*
Geolocation data, such as device location	Our affiliates and subsidiaries; trusted third-party service providers in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.
Audio, electronic, visual and similar information, such as photographs and call and video recordings.	*Our affiliates and subsidiaries; trusted third-party service providers in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.*
Inferences drawn from any of the Personal Information listed above to create a profile about, for example, an individual's preferences, behaviour and characteristics	*Our affiliates and subsidiaries; trusted third-party service providers in accordance with section "With whom do we share your Personal Data?" of this Privacy Notice.*

Use of Personal Information

We use these categories of Personal Information for the purposes of operating, managing, and maintaining our business, providing our products and services, and accomplishing our business purposes and objectives, as described above under "What Personal Data do we collect and for which Purposes?"

We do not sell and have not sold Personal Information in the preceding 12 months, as "sale" is defined in the CCPA. We do not sell the Personal Information of minors under 16 years of age.

Individual Rights and Requests

If you are a California resident, you may request that we:

• Disclose to you the following information covering the 12 months preceding your request:
o The categories of Personal Information we collected about you and the categories of sources from which we collected such Personal Information;
o The specific pieces of Personal Information we collected about you;
o The business or commercial purpose for collecting(if applicable) Personal Information about you; and
o The categories of Personal Information about you that we otherwise shared or disclosed, and the categories of third parties with whom we shared or to whom we disclosed such Personal Information (if applicable).
• Delete Personal Information we collected from you.

To make a request for the disclosures or deletion described above, please contact us at: https://www.philips.com/a-w/privacy/questions-and-feedback.html or (866) 309-3263. We will verify and respond to your request as described above in "Your Choices and Rights" and consistent with applicable law, taking into account the type and sensitivity of the Personal Information subject to the request. We may need to request additional Personal Information from you, such as email address, mailing address, or telephone number in order to verify your identity and protect against fraudulent requests. If you make a deletion request, we may ask you to verify your request before we delete your Personal Information.

You have the right to be free from unlawful discrimination for exercising your rights under the CCPA.

Authorized Agents

If you want to make a request as an authorized agent on behalf of a California resident, you may use the submission methods noted above. As part of our verification process, we may request that you provide, as applicable:

• Proof of your registration with the California Secretary of State to conduct business in California;
• A power of attorney from the California resident pursuant to Probate Code sections 4000-4465;
• Written permission that the California resident has authorized you to make a request on the resident's behalf. This permission must be signed (via physical or e-signature) by the California resident.

If you are making a request on behalf of a California resident and have not provided us with a power of

attorney from the resident pursuant to
Probate Code sections 4000-4465, we may also require the resident to:

- Provide you with a written permission signed by the resident to make the request on the resident's behalf;
- Verify the resident's own identity directly with us;
- Directly confirm with us that the resident provided you permission to submit the request.

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